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S T A T E O F R H O D E I S L A N D

IN GENERAL ASSEMBLY

JANUARY SESSION, A.D. 2009

A N A C T

RELATING TO CRIMINAL PROCEDURE -- SENTENCE AND EXECUTION

Introduced By: Senators Perry, Miller, Sosnowski, Metts, and C Levesque

Date Introduced: January 22, 2009

Referred To: Senate Judiciary

It is enacted by the General Assembly as follows:

SECTION 1. Section 12-19-18 of the General Laws in Chapter 12-19 entitled "Sentence and Execution" is hereby amended to read as follows:

12-19-18. ~~Termination of imprisonment on deferred sentence on failure of grand jury to indict~~ Termination of imprisonment on deferred or suspended sentence or probationary period on failure of grand jury to indict – Information not filed – The defendant found not guilty. -- Whenever any person has been sentenced to imprisonment for violation of a deferred or suspended sentence or probationary period by reason of the alleged commission of a felony or misdemeanor and the grand jury has failed to return any indictment or an information has not been filed or the defendant has been found not guilty or the defendant has been otherwise exonerated on the charge which was specifically alleged to have constituted the violation of the deferred or suspended sentence or probationary period, the sentence to imprisonment for the alleged violation of the deferred or suspended sentence or probationary period shall, on motion made to the court on behalf of the person so sentenced, be quashed, and imprisonment shall be immediately terminated, and the deferred or suspended sentence or probationary period shall have same force and effect as if no sentence to imprisonment had been imposed. This law shall apply to all individuals serving a sentence of imprisonment as a violator of probation, or a suspended or deferred sentence.

SECTION 2. This act shall take effect upon passage.

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EXPLANATION

BY THE LEGISLATIVE COUNCIL

OF

A N A C T

RELATING TO CRIMINAL PROCEDURE -- SENTENCE AND EXECUTION

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This act would require the termination of imprisonment relative to a probationary period or suspended sentence in situations where information has not been filed or the defendant has been found not guilty on the charge which was specifically alleged to have constituted the violation of the probationary period or suspended sentence.

This act would take effect upon passage.

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